

In determining whether or not to grant an import permit under the Biosecurity Act 2015 (Act), the Director of Biosecurity or their delegate may have regard to whether the applicant is a fit and proper person to manage the biosecurity risk associated with the goods to be covered by the import permit.

This guidance will help you understand what is meant by ‘fit and proper’ and what you need to do to meet the fit and proper test.

Matters relevant to determining whether a person is fit and proper are set out in section 530 of the Act.

Who the test applies to

Applicants for an import permit can include:

- a sole trader (individual)
- a company or corporation
- a partnership
- a trustee applying on behalf of a trust, or
- other (for example, a Commonwealth agency or university).

It is important that the person completing the application form has the authority to answer all questions on behalf of the applicant.

Relevant associates

Whether the applicant is a fit and proper person may be affected by the conduct and history of the applicant’s associates.

When completing the fit and proper person questionnaire, you must identify all associates that are relevant to the proposed permit application and undertake appropriate checks. The relevant associates will vary depending on the applicant.

We will rely on the applicant to make reasonable enquiries of all relevant associates but we may conduct verification audits of the checks you have undertaken.

As a guide, the Director of Biosecurity or their delegate may regard the following people as relevant associates:

- If the applicant is an individual: a family member , employee or business partner of the applicant who is in a position to deal with or control the goods proposed to be imported under the permit.
- If the applicant is a body corporate: directors, officers or shareholders who are in a position to deal with or control the goods proposed to be imported under the permit.
- Anyone else that is directly or indirectly concerned with, or in a position to deal with or control the goods proposed to be imported under the permit. This could include customs brokers or transport agents lodging applications.

See section 11 of the Act for more information on the meaning of ‘associate’.

Questionnaire and declaration

The applicant is required to provide information that is relevant to determining their fitness and propriety. Questions include:

- relevant criminal history of the applicant and relevant associates – in relation to breaches of Commonwealth law, particularly convictions relating to integrity and honesty.
- any debts owed to the Commonwealth by the applicant or relevant associates, under the Biosecurity Act or other specified legislation.
- whether the applicant or relevant associates have had permits, arrangements or approvals suspended or revoked under the Biosecurity Act or other specified legislation.

The person who is authorised to make the application on behalf of the applicant is required to give a declaration that they have made reasonable enquiries in respect of the answers given in the questionnaire, and that the information is true and correct to the best of their knowledge.

Giving false or misleading information is a serious offence. The person making the declaration may be liable to a civil penalty for giving false or misleading information.

Applying the fit and proper person test in relation to an import permit

The questionnaire is just one part of what the decision maker may take into consideration when assessing your application for an import permit.

Answering ‘yes’ to questions in the fit and proper test

Closer consideration will be given to applications where a yes answer has been provided to one or more of the fit and proper questions.

A yes answer will not automatically result in a refusal to issue an import permit but it is likely to require further review. The Director or their delegate may consider:

- the circumstances of the case
- the context of the activities in which the person is or will be engaged.

In some circumstances, a yes answer may result in a request for further information about the circumstances of that answer, to better inform a decision.

If we require further information from you, the timeframe for determination of your application will be extended.

Maintaining status as a fit and proper person

We expect applicants to have appropriate controls in place to manage the biosecurity risks associated with the proposed import of goods into Australian territory. This means having appropriate structures, procedures, systems, skills and staff to meet biosecurity obligations.

Our interactions with applicants will be based on their behaviours and choices.

We expect you to:

- make reasonable enquiries in respect of the information you provide
- provide true and correct information on all forms and documents
- provide the full facts and circumstances if you seek advice from us
- notify us of any changes to the arrangement including any potential change to the fitness and propriety of the biosecurity industry participant (including conduct of any relevant associates)
- provide us with any reasonable assistance and information that we request.

We will:

- help you understand your rights and obligations
- make it as easy as possible for you to meet your biosecurity obligations
- support those who want to do the right thing, including through our dedicated phone service
- actively pursue those few applicants who may opportunistically or deliberately provide false or misleading information.

Any changes we find to the applicant's risk assessment during our routine compliance checks may trigger the need to reconsider the issue or conditions of the permit.

Further information

If you need further information please call us on 1800 900 090.

This guidance is provided for general information only. The department does not provide advice on the application of Biosecurity Act to particular circumstances, and does not approve a particular strategy or course of action in a particular matter.

Source: <https://www.agriculture.gov.au/biosecurity-trade/import/online-services/bicon/bicon-permit/fit-proper-person-test>